DEPARTMENT OF THE AIR FORCE
WASHINGTON, DC

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MEMORANDUM FOR DISTRIBUTION C
MAJCOMs/FLDCOMs/FOAs/DRUs

SUBJECT: Department of the Air Force Policy Memorandum Establishing Authority for Implementation of Increasing Space Launch Capacity Through Space Launch Support Services

By Order of the Secretary of the Air Force, this Department of the Air Force Policy Memorandum (DAFPM) is a reissuance of the first instance of a Space Force publication (DAFPM2024-10-16) that implemented the authorities established in 10 U.S.C. § 2276a. Compliance with this Memorandum is mandatory. To the extent its directions are inconsistent with other Department of the Air Force (DAF) publications, information herein prevails, in accordance with DAF Instruction (DAFI) 90-160*, Publications and Forms Management* and DAF Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*. This policy is applicable to United States Space Force, and Regular Air Force Delta or MAJCOM providing commercial space support or services IAW10 U.S.C. § 2276a.

The attachment to this memorandum delegates authorities to the Space Force and provides guidance on the implementation of 10 U.S.C. § 2276a, *Special authority for provision of space launch support to increase space launch capacity*.

Ensure all records created as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, Records Management and Information Governance Program, and are disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located in the Air Force Records Management System.

This Memorandum becomes void after one year has elapsed from the date of this memorandum, or upon publishing of a new Policy Directive permanently establishing this policy, whichever is earlier.

TROY E. MEINK
Secretary of the Air Force

Attachment:
Implementation Guidance

# IMPLEMENTATION GUIDANCE

1. Pursuant to the passage of the Fiscal Year (FY) 2024 National Defense Authorization Act (NDAA), Congress provided the special authority for provisioning of space launch support services to increase space launch capacity at United States Space Force (USSF) spaceports and DAF installations.

2. Policy

a. Agreements: Installation commanders shall modify existing contracts or other transaction authorities, and enter into new agreements as necessary, with commercial entities (defined in 10 U.S.C. § 2276a as non-Federal entities) to allow the collection of indirect cost reimbursements for launch support services provided by DAF installations. These agreements shall be executed with commercial entities at each installation. Installation commanders shall determine if requested support to commercial entities is in the national interest prior to committing to provide services. Installation commanders may mandate specific services for the commercial entities if those services contribute to the safety, security, and operational efficiency of the installation. Any agreement shall also specify that availability of services may be restricted at any time due to operational requirements.

b. Pricing: Direct cost reimbursement shall be collected for any launch support services provided on DAF spaceports and installations to commercial space entities. The indirect costs of providing goods or services to commercial providers under agreements in paragraph 2.a shall also be collected. Indirect costs may be collected from commercial entities through the establishment of a rate, as a fixed price, or other method as appropriate for the service provided. Fees shall be established consistent with the best practices and requirements of DoD 7000.14-R Financial Management Regulation, Volume 11A, Chapter 4 and Office of Management and Budget Circular A-25, as applicable. In accordance with direction in 10 U.S.C. § 2276a any reimbursement, direct or indirect, shall be credited to the appropriation account from which it came. The appropriation account must be identified prior to the reimbursement being collected. It is essential that the Department be fully transparent with industry. Commanders, and their staffs, will have engagements with industry to discuss the collection methodology, how rates or fixed prices are set, and how often rates will be reviewed and established.

c. Limitations: 10 U.S.C § 2276a imposed limitations on indirect cost reimbursement for fiscal year 2024 through fiscal year 2026. In accordance with these limitations per commercial entity agreement, installations may collect indirect costs limited to no more than 30% of total direct cost reimbursement. Additionally, no more than $5M total may be collected annually from a commercial entity per agreement. Installation commanders may utilize a lower rate or more restrictive reimbursement limit if additional resources

d. are not needed to sustain space launch support services. Any such limitations should be applied to all commercial entities the installation supports. After the limitation period (FY24-FY26) expires, indirect reimbursement shall be collected, as needed, for continued space launch support services capacity growth incorporating a pricing methodology that is transparent to, and informed by, our industry partners.

3. Roles and Responsibilities.

a. Space Force Chief Operations Officer (SF/COO) will:

(1) Lead implementation of this policy.
(2) Coordinate actions with SAF/GC, AF/JA, SAF/FM, SAF/SQ and SSC to resolve any questions or concerns.
(3) Ensure all applicable reporting requirements are submitted.
(4) Develop, or update, a DAF Policy Directive to codify the guidance in this Memorandum.

b. The Commander, Space Systems Command (SSC) will:

(1) Execute lead command responsibilities and duties for space launch support to commercial entities IAW DAFPD 10-9, Lead Command/Lead Agent Designation and Responsibilities for United States Air Force Weapon Systems, Non-Weapon Systems, and Activities.
(2) Provide guidance for managing agreements with commercial entities.
(3) Space Launch Deltas (SLDs) will execute the collection of direct/indirect cost reimbursements.

4. Space Systems Command (SSC) is the lead command for space launch support to commercial entities and shall incorporate future DAF/SF guidance in any updates to instructions for the SLDs. Other commands shall consider if guidance is appropriate based on the level of commercial space entity activity on their subordinate installations. Any additional commands beyond SSC issuing instructions should consult with SSC to facilitate consistent application of this guidance across the industry. SAF/FM shall provide any additional collection process, policy, or requirements.